



File No.: EXP202104896

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by the REAL FEDERACIÓN ESPAÑOLA DE TENIS DE MESA (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated January 23, 2023, and based on the following

FACTS

FIRST: On January 23, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202104896, by virtue of which an administrative fine of 10,000 euros was imposed on the REAL FEDERACIÓN ESPAÑOLA DE TENIS DE MESA for:

“- A violation of Article 9.2 of the GDPR, in accordance with Article 83.5.a) of the GDPR, and for the purposes of prescription in Article 72.1.e) of the LOPDGDD.”

Said resolution, which was notified to the appellant on January 24, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00051/2022, the following was recorded:

“1) The complainant claims that he was going to take an exam on November 20, 2021, for “table tennis coach” that had been called by the respondent and was required to present the complete vaccination schedule against COVID-19. The location for the test was chosen by the respondent, at the facilities of the “Joaquín Blume” residence, High-Performance Center (CAR), owned by the Higher Sports Council. The exam test corresponded to the last of the mandatory in-person part of a call for the level 1 sports technician course in table tennis. It was called by circular 43, dated March 16, 2021, for the 2020/2021 season, and the date of November 20, 2021, was already determined as the exam date. According to the lists provided by the respondent in evidence, 32 students attended, including the complainant, all of whom were federated as certified, although it was not a requirement to take the exam.

2) On October 14, 2021, the respondent received an email from the CSD with a copy to all sports federations notifying an update of access rules to the (CAR), Residence, indicating that the “complete vaccination schedule” was necessary and “if it could not be provided due to any medical prescription, it would be necessary...”

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to provide an antigen or PCR test no older than 24 hours.” It also required the submission of lists “certifying complete vaccination,” with those authorized to use the facilities—an attached file was included to facilitate the requested information—, with the rules taking effect from 25/10/2021. The email added that this was due to “the changes in the COVID-19 protocols and in light of the evolution of the pandemic and the preventive measures that have been taken.” The respondent did not have or obtain a copy of the protocol, and the CSD did not send a copy of it.

3) In response to the request for evidence regarding the role of the Data Protection Delegation in the claim, the respondent indicated that it did not provide knowledge, considering that “it was a mandatory rule for the Federation, believing that there was no room for negotiation or modification of it.” It also does not appear that it informed about the claimant's complaints, indicating that it did inform “when it became aware once the AEPD communicated the complaint filed against the RFETM.”

4) The respondent—training department—communicated on 15/10/2021 to the students who were going to take the exam that the exam center, Residencia J. Blume, of the CSD, required for access to

take the exam, the "COVID passport," and "We would need you to send us your COVID passport to this email" (of training, used to communicate with the students). The claimant sent an email in response on 26/10/2021 stating that this requires a legitimate basis, being health data. The Federation responded on 2/11 (sports management, with a copy to training) that the requirement was imposed by the holder of the venue, CSD "offering the option to send the document to the medical advisor of the Royal Federation, Dr. ... in order for your medical data to remain protected," without the respondent availing itself of this measure or alternative.

On 8/11/2021, the claimant requested the respondent to eliminate the vaccination requirements and was responded to in a letter dated 11/11/2021, stating that the conditions were imposed by the CSD, and that the RFETM had no authority to modify said protocol, existing "the possibility of an alternative such as presenting a negative PCR from the last 72 hours" "which was already attempted to be explained to you."

There is another letter from the respondent to the claimant dated 18/11/2021, reiterating that the protocol is from the CSD to provide health guarantees to attendees and protect public health, reiterating the option of the PCR test to the vaccination schedule with certification.

5) It is evidenced that on 17/11/2021, the respondent informed the students in an email "that they can send a vaccination certificate or a negative test," indicating the email address: ***EMAIL.1.

6) The respondent sent a list to the CSD on 19/11/2021, of the students who had accredited to the respondent the presentation of "the vaccine or negative PCR diagnostic test in the previous 72 hours," in the form of a certificate, a total of 29, containing their names and surnames and the NIF. These students sent their vaccination certificates and tests, without the respondent distinguishing in the list whether it is from

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one type or another. The respondent indicates that the students used two official email addresses of the RFETM to send the vaccination certificates or the negative test results, ***EMAIL.2 and ***EMAIL.1, with the former being the one commonly used between the training manager and the students, while the latter was offered two days before the exam due to the need to obtain the necessary data to send the list and ensure access to the exam. The respondent indicates that the address ***EMAIL.3, which according to the respondent belongs to a medical advisor of the RFETM, was offered exclusively to the claimant in an email response to the claimant on 2/11, but was not used. The method of sending and receiving the list dated 18/11/2021 is unknown.

The following day, the respondent also communicated to the CSD in an email, a total of three additional students, including the claimant, also with their names and surnames and NIF, certifying that they could access. The email was sent with copies to various addresses, including a Gmail address, several CSD domain addresses, including security personnel, and different sections of the respondent.

7) On the day of the exam, access control was carried out by the security personnel assigned to the Residence, and at the entrance, the claimant presented and exhibited a negative PCR test certificate, confirming in an email - a proven fact - the respondent that same day to the CSD the permission for access.

8) According to the respondent, access to the Residence follows a protocol from the CSD that establishes obligations to prevent the spread of the virus and preserve health, mentioning Articles 5, 15, and 16 of Law 2/2021 of 29/03, on urgent measures for prevention, containment, and coordination to address the health crisis caused by COVID-19, which do not establish the authority to require the submission of a vaccination certificate or PCR test. The respondent, as a Federation, does not appear to have been involved in the decision to impose the requirement for vaccination ordered by the CSD in the email of 14/10/2021 for access to the Residence, although it has stated that it was a "consensual measure," it has also expressed that it only had to comply with that requirement, although it is also not recorded that it conveyed the various complaints of the claimant to the CSD regarding that imposition (three writings) nor to the DPD, as the respondent has stated that it did not disclose the facts to this until the first writing from the AEPD with the complaint was received.

9) The respondent, despite having stated that the requirement for vaccination certification or PCR tests is imposed by the CSD, the holder of the facility, considers the processing lawful based on:

- The interested parties gave their consent for "one or several purposes."

- The processing is necessary to protect vital interests of the interested party or another natural person.
- Executes a mission of public interest as a collaborating agent of the Public Administration by performing public administrative functions (art. 30.2 and 33-1-d) of Law 10/1990 of 15/10 on Sports).
- For the processing of special health data, it stated that it is carried out under Article 9.h) of the GDPR, based on the prevention of the health of RFETM employees and the residence, where the tests were held, in order to avoid the spread of the virus.

THIRD: The appellant submitted on 21/02/2023, to this Spanish Agency for Data Protection, a request for reconsideration, basing it fundamentally on

1) Inconsistency arising from archiving the infringement of Article 6.1 of the GDPR by admitting vital interest as a legitimizing basis and sanctioning under Article 9.2 of the GDPR for not enabling health data when it was a requirement of the CSD to safeguard the possibility of contagion in a public establishment that has a residence, preventing the spread of the disease to third parties.

2) Reiterates that it performed administrative collaboration functions for training technicians during the exam, and acted as a collaborator of the public administration, and that the warning should be applied as it is included in Article 77 of the LOPDGDD, including the fact of attending the exam venue.

3) Reiterates the lack of culpability and adds that the principle of good faith and legitimate trust should be applied.

4) Requests that mitigating circumstances be taken into account such as the absence of benefits, non-linkage of its activity with the performance of treatments, lack of intent, and the pandemic situation. Requests that the very category of data that is subject to processing (83.2.g) which is implicit in the typification of the precept not be considered as an aggravating factor.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

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In relation to the statements made by the appellant, which essentially reiterate the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in the Legal Grounds of the contested Resolution.

Regarding the lack of culpability, it can also be added that the respondent could have acted differently than they did in response to the successive claims made by the claimant.

As for the inconsistency in sanctioning under Article 9.2 of the GDPR, the resolution evaluated and explained the distinction between the legitimizing basis of Article 6.1 and the authorization for the processing of health data referred to in Article 9.2 of the GDPR due to the prohibition detailed in paragraph 1.

Finally, concerning legitimate trust, given the presence of culpability, such exoneration is not appreciable, especially because shortly after receiving the request for the provision of health data, the claimant began to clearly express the mismatch in the request for data, requests that had to be reiterated two more times before the examination took place.

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the REAL FEDERACIÓN ESPAÑOLA DE

TENIS DE MESA against the resolution of this Spanish Agency for Data Protection issued on 23/01/2023, in file EXP202104896.

SECOND: TO NOTIFY this resolution to the REAL FEDERACIÓN ESPAÑOLA DE TENIS DE MESA.

THIRD: To warn the sanctioned party that the imposed sanction must be made effective once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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